

25LBCV01191 25LBCV01191

County: los-angeles

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1. Background

Facts

Plaintiff, Harley-Davidson Credit

Corp. filed this action against Defendants, Harbor City Enterprises, Inc., Mark Ruffalo, Donna Marie Ruffalo, Trustee of the Ruffalo Family 2003 Trust, and Leslie Ruffalo, Trustee of the Ruffalo Family 1981 Revocable Trust for breach of contract, breach of guarantees, and “on account.” The crux of the complaint is that Harbor City Enterprises, Inc. entered into a Credit Financing Agreement with Plaintiff pursuant to which Plaintiff would extend credit to HCEI to purchase new and used motorcycles and related accessories and parts. In 2004, Ronald and Barbara Ruffalo, as trustees of the 1981 trust, executed a continuing guaranty of the obligations. In 2005, Mark and Donna Ruffalo, as trustees of the 2003 trust, executed a continuing guaranty of the obligations. In 2024, HCEI defaulted on its obligations, and the default has not been cured.

All defendants are in default with the exception of Leslie Ruffalo, Trustee of the Ruffalo Family 1981 Revocable Trust.

2. Motion

for Summary Judgment

a.

Parties' Positions

Plaintiff moves for summary judgment on the

complaint in its favor and against Leslie Ruffalo, Trustee of the Ruffalo Family 1981 Revocable Trust, contending undisputed evidence shows the trust guaranteed the debt, the debt is in default, and a sum certain is due on the debt.

Defendant opposes the motion. She argues (a) each element of each cause of action pled in the complaint is not established, (b) the evidence purporting to show the predecessor trustees signed the trust is inadmissible, (c) triable issues of material fact exist as to the amount of damages, (d) triable issues of material fact exist as to the effectiveness of the continuing guaranty.

Plaintiff, in reply, contends evidence of all elements of each cause of action has been presented, the evidence is admissible, and nothing in the opposition raises a triable issue of material fact.

b.
Burdens
on Summary Judgment

Summary judgment is proper “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Code Civ. Proc. §437c(c).) Where a defendant seeks summary judgment or adjudication, he must show that either “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action.” (Id. at §437c(o)(2).) A defendant may satisfy this burden by showing that the claim “cannot be established” because of the lack of evidence on some essential element of the claim. (Union Bank v. Superior Court (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a “triable issue of one or more material facts exists as to that cause of action or defense thereto.” (Ibid.)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be

established or (2) that there is a complete defense to that cause of action. (Id. at §437c(p).) A defendant may discharge this burden by

furnishing either (1) affirmative evidence of the required facts or (2) discovery responses conceding that the plaintiff lacks evidence to establish an essential element of the plaintiff's case. If a defendant chooses the latter option he or she must present evidence "and not simply point out that plaintiff does not possess and cannot reasonably obtain needed evidence...." Aguilar, supra, 25 Cal.4th at 865-66,

[A] defendant may simply show the plaintiff cannot establish an essential element of the cause of action "by showing that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (Id. at p. 854.) Thus, rather than affirmatively disproving or negating an element (e.g., causation), a defendant moving for summary judgment has the option of presenting evidence reflecting the plaintiff does not possess evidence to prove that element. "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing" to support an essential element of his case. (Aguilar, supra, at p. 855.) Under the latter approach, a defendant's initial evidentiary showing may "consist of the deposition testimony of the plaintiff's witnesses, the plaintiff's factually devoid discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action." (Lona v. Citibank, N.A., supra, 202 Cal.App.4th at p. 110.)

In other words, a defendant may show the plaintiff does not possess evidence to support an element of the cause of action by means of presenting the plaintiff's factually devoid discovery responses from which an absence of evidence may be reasonably inferred. (Scheidig v. Dinwiddie Construction Co. (1999) 69 Cal.App.4th 64, 83.)

Thus, a moving defendant has two means by which to shift the burden of proof under the summary judgment statute: "The defendant may rely upon factually insufficient discovery responses by the plaintiff to show that the plaintiff cannot establish an essential element of the cause of action sued upon. [Citation.] [Or a]lternatively, the defendant may utilize the tried and true technique of negating ('disproving') an

essential element of the plaintiff's cause of action." (Brantly v. Pisaro (1996) 42 Cal.App.4th 1591, 1598.) Leyva v. Garcia (2018) 20 Cal.App.5th 1095, 1103.

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (Id. at §437c(p)(2).) On a motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (D'Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21.)

c.

Evidentiary
Objections

Defendant submitted voluminous evidentiary objections with her opposition papers. The Court will address the material objections below. The Court declines to rule on the immaterial objections. CCP §437c(q).

d.

Elements
of Causes of Action

The complaint includes causes of action against Defendant for breach of guaranty and "on account." As Defendant correctly notes in opposition, there is no recognized cause of action in California for "on account." It appears Plaintiff intended to plead a common count cause of action for "account stated." In any event, the burden on the motion is to show that Defendant has an obligation to pay monies due to Plaintiff and has failed to do so; the failure to brief the elements of the causes of action is not fatal to the motion, as the Court is familiar with the elements of a cause of action for breach of contract and one for common counts.

e.

Authentication
of Guaranty

Plaintiff purports to authenticate the guaranty via the Declaration of Mark LaMendola. Defendant, in opposition, contends Plaintiff confusingly submitted four different LaMendola declarations in support of the motion. Plaintiff submitted various LaMendola declarations in support of its request for default judgment against the other defendants, but only submitted one LaMendola declaration in connection with this motion. Plaintiff does, however, rely on the other declarations in its separate statement, which is quite confusing.

In the declaration filed with the moving papers, LaMendola declares he is Director of Commercial Operations for Plaintiff and has competent knowledge of the information set forth in the declaration due to his position. He declares he has access to records, including records relating to loans. He declares the records are maintained in the ordinary course of business and were made near the time of the occurrence of the events they reflect. He declares it is Plaintiff's practice to keep such records in the ordinary course of business. He declares that, on 3/28/24, Ronald and Barbar Ruffalo executed a continuing guaranty on behalf of the 1981 trust, and indicated "See Exhibit A."

Defendant correctly notes that there is a failure to authenticate Exhibit A. Setting aside any other potential problems identified by Defendant, LaMendola did not even state that Exhibit A is a true and correct copy of what it purports to be. The burden on summary judgment is construed strictly against the party seeking judgment, and absent a statement, under penalty of perjury, that Exhibit A is a true and correct copy of what it purports to be, the foundation objection is sustained and Plaintiff fails to meet its burden to show it is entitled to judgment as a matter of law.

c. Damages Calculations

The Court notes, though not necessary to a resolution of the merits of the motion, that the damages calculations suffer from a similar defect. LaMendola, in his 12/10/25 declaration filed in support of Plaintiff's request for judgment against the defaulted co-defendants, indicates, by way of example,

that Plaintiff gave Defendants a small credit in the amount of \$4000 in early 2025. ¶10. He fails, however, to indicate how that credit was calculated, what it was for, or anything else about the credit. Additionally, on the last page of the list of invoices LaMendola attaches as Exhibit 1 to the 12/10/25 declaration, there are eleven lines showing various amounts of interest purportedly due, but there is no explanation anywhere in the declarations detailing how that interest was calculated.

As Defendant correctly notes in opposition to the motion, pursuant to CDF Firefighters v. Maldonado (2008) 158 Cal.App.4th 1226, 1239, when a plaintiff seeks summary judgment of a contract cause of action, an element of that cause of action is damages, which must be proved up in full in order to obtain a judgment on the cause of action.

The motion is therefore also denied due to Plaintiff's failure to provide evidence to establish the amount of the damages sought.

f. Additional
Issues

The Court declines to rule on Defendant's arguments relating to the effectiveness of the continuing guaranty, as doing so is not necessary to a resolution of the merits of the motion, which is denied as set forth above.

g.
Conclusion

The motion for summary judgment is denied. Plaintiff is ordered to give notice.